

TENTATIVE RULING

Kevin Sage
v.
Pebble Beach Company, et al
24CV005115

Defendant’s Motion for Summary Judgment or, Alternatively, for Summary Adjudication

Hearing Date: September 18, 2026

Defendant Pebble Beach Company, a General Partnership (“Defendant”), moves for summary judgment against Plaintiff Kevin Sage (“Plaintiff”) based on recreational use immunity under Civil Code section 846 (“section 846”). After considering the parties’ initial and supplemental papers, the Court concludes that Defendant has met its initial summary-judgment burden to show section 846 immunity applies and that Plaintiff has failed to raise a triable issue of fact concerning any statutory exception, specifically the exception under subdivision (d)(2) that grants permission to enter for a recreational purpose in exchange for consideration (the “Consideration Exception”). The undisputed evidence shows Plaintiff paid no consideration to enter Pebble Beach, and bicyclists and pedestrians are never charged any entry fee. The only fee charged relates to operating motor vehicles and is not paid for permission to enter the property itself. Because Plaintiff has not established that the Consideration Exception applies, Defendant is entitled to judgment as a matter of law. Accordingly, the Motion for Summary Judgment is **GRANTED**.

Defendant’s request for judicial notice of Plaintiff’s operative Complaint and its Answer is **GRANTED**. [Evid. Code §§ 452, subd. (d), 453.] Plaintiff’s Evidentiary Objection Nos. 1-12 are **OVERRULED**. Defendant’s Evidentiary Objection Nos. 1-4 to Plaintiff’s Supplemental Opposition are **OVERRULED**.

Defendant shall prepare the Proposed Order and Judgment consistent with this Tentative Ruling.

Factual and Procedural Background.

On April 18, 2024, Plaintiff rode his bicycle from his Carmel residence into Pebble Beach. [Defense Facts¹ 4-6, 8.] Plaintiff accessed Pebble Beach on a bicycle using one of the gated entry points staffed by security personnel. [Defense Fact 55.] Inside Pebble Beach, Defendant owns and maintains the private roadway system, including Lisbon Lane, where the incident occurred. [Defense Facts 16, 19-23, 26.] The parties do not dispute Pebble Beach’s ownership of the road. [*Ibid.*]

¹ “Defense Fact(s)” refers to the undisputed fact and evidentiary supported cited in Defendant’s Separate Statement.

Plaintiff alleges his bicycle struck a pothole on Lisbon Lane, causing him to fall and suffer personal injuries. [Defense Facts 33-35, 38, 42-43.] In his Complaint filed on December 3, 2024, Plaintiff asserts a single cause of action for premises liability against Defendant. [Complaint, Attachment 1 to Request for Judicial Notice (“RJN”) at ¶ 10.] Defendant in its Answer asserts an affirmative defense based on section 846 recreational immunity. [Answer, Attachment 2 to RJN at ¶ 17.]

Discovery responses submitted by Defendant include Plaintiff’s admissions that his bicycling involved recreational elements. [Defense Facts 19-24.] Plaintiff also admitted that he paid no fee at the gate on the date of the incident and that Pebble Beach has never charged him, or any bicyclist or pedestrian, for entry. [Defense Facts 65-66.]

Defendant’s Director of Security, Peter Brown, attests in his declaration that (1) Defendant owned and maintained Pebble Beach’s private roads; (2) no pedestrian or bicyclist is ever charged to enter Pebble Beach or use its roads; (3) a fee is charged only to motorists, and the fee is intended to offset road maintenance costs and damage caused by vehicles; and (4) all persons may freely enter Pebble Beach on foot or bicycle. [Defense Facts 52-57, 62-64, 67.]

The gate fee policy is reflected in Standard Operating Procedure (“SOP”) No. 95. [Plaintiff Fact² 1.] While the SOP refers to “coastal access” [*ibid.*], the policy uniformly requires payment only from persons bringing motor vehicles onto the property [Defense Fact 61]. Bicyclists and pedestrians may enter without payment and without restriction. [Defense Facts 52-53, 55, 61-64.]

Legal Standard.

Summary judgment or adjudication is warranted where there are no triable issues of material fact, and the moving party is entitled to judgment as a matter of law. [Code Civ. Proc. § 437c, subds. (c), (f); *see Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 843.]

Courts follow a three-step process when reviewing a motion for summary judgment or adjudication: (1) identify the issues outlined by the pleadings; (2) evaluate whether the moving party has disproved the opponent’s claims; and (3) assess if the opposition has shown there is a triable factual issue. [*Hinesley v. Oakshade Town Center* (2005) 135 Cal.App.4th 289, 294.]

A motion for summary adjudication proceeds “in all procedural respects as a motion for summary judgment.” [Code Civ. Proc. § 437c, subd. (f)(2).] The moving party always bears the initial burden of making a prima facie showing that no material factual issues are in dispute. [*Choochagi v. Barracuda Networks, Inc.* (2020) 60 Cal.App.5th 444, 453.] When a defendant files for summary judgment or adjudication, they satisfy their initial burden if they prove that at least one element of the cause of action cannot be established or that a complete defense exists. [Code Civ. Proc. § 437c, subd. (p)(2).] Failure to meet this burden denies the motion and ends the inquiry. [*Id.*]

² “Plaintiff Fact(s)” refers to the additional material fact and evidentiary supported cited in Plaintiff’s Additional Material Facts.

To meet the burden of proving that a cause of action cannot be established, a defendant must demonstrate that the plaintiff does not possess, and cannot reasonably obtain, the needed evidence. [*Aguilar*, 25 Cal.4th at 854.] Merely pointing out the lack of evidence is not enough. [*Gaggero v. Yura* (2003) 108 Cal.App.4th 884, 891.] This supporting evidence may include affidavits, declarations, admissions, depositions, answers to interrogatories, and matters subject to judicial notice. [*Aguilar*, 25 Cal.4th at 855.]

Even if the moving defendant meets its burden, the opposing plaintiff can still defeat a summary judgment or summary adjudication motion by presenting evidence that raises a triable issue of fact. [*Aguilar*, 25 Cal. 4th at 849-850.] The plaintiff cannot rely solely on allegations or denials in its pleadings; it must present specific facts indicating a triable issue of material fact concerning the cause of action. [Code Civ. Proc. § 437c, subd. (p)(2); *Choochagi*, 60 Cal.App.5th at 453.] If the plaintiff fails to do so, summary judgment or summary adjudication should be granted. [*See Avivi v. Centro Medico Urgente Medical Center* (2008) 159 Cal.App.4th 463, 467.]

The court must liberally construe the evidence presented by the party opposing summary judgment or adjudication, resolving all doubts and making all reasonable inferences in that party's favor. [*Aguilar*, 25 Cal.4th at 844-845.] When reviewing such a motion, the court must consider what inferences a factfinder could reasonably draw that favor the opposing party. [*Binder v. Aetna Life Ins. Co.* (1999) 75 Cal.App.4th 832, 839.] The court's main role is to identify issues, not decide them; only clear and indisputable inferences lead to a legal resolution. [*Ibid.*] If the evidence conflicts, the trial court must resolve factual disputes at trial. [*Ibid.*] Furthermore, the trial court cannot weigh evidence as a factfinder would to determine credibility, nor can it grant summary judgment based on credibility assessments. [*Id.* at 840.]

Discussion.

A. Defense RJN and the Parties' Evidentiary Objections.

Defendant's request for the Court to judicially notice Plaintiff's Complaint and its Answer is **GRANTED**. [Evid. Code §§ 452, subd. (d), 453.]

All of Plaintiff's evidentiary objections are **OVERRULED** on the grounds asserted.

Defendant's evidentiary objections to Plaintiff's Supplemental Opposition are **OVERRULED** because the Supplemental Opposition is not evidence. The underlying "evidence" at issue is referenced at footnote 1 of page 3, where the brief quotes Plaintiff's response to Request for Admission No. 27. That response is admissible and part of the evidentiary record. [Defense Facts 4, 19, and 20.]

B. Section 846 Immunity.

Generally, private landowners owe visitors a duty of reasonable care. [*Rowland v. Christian* (1968) 69 Cal.2d 108, 119.] However, section 846 restricts this liability by excluding a duty of care for those entering or using land for recreational purposes. [*Ornelas v. Randolph*

(1993) 4 Cal.4th 1095, 1099.] Under this section, “recreational purpose” encompasses all forms of vehicular riding. [Civ. Code § 846, subd. (b).] The statutory immunity covers owners with either possessory or non-possessory interests in the land. [Civ. Code § 849; *Ornelas*, 4 Cal.4th at 1103; *Hubbard v. Brown* (1990) 50 Cal.3d 189, 195-197.] Nonetheless, this immunity does not apply if the landowner: (1) intentionally or maliciously fails to warn about a dangerous condition, activity, structure, or use; (2) grants permission to enter for a recreational purpose in exchange for consideration; or (3) explicitly invites rather than permits entry onto the property. [*Ornelas*, 4 Cal.4th at 1099-1100.]

1. Defendant Met Its Summary-Judgment Burden.

In seeking summary judgment based on the affirmative defense of section 846 recreational immunity, Defendant must show that there is no genuine issue of material fact, because Plaintiff’s injury occurred while recreationally bicycling on Defendant’s property. [*Aguilar*, 25 Cal.4th at 850; Civ. Code § 846.]

Here, it is undisputed that the incident giving rise to Plaintiff’s premises-liability claim occurred on property that Defendant owns and maintains. [Defense Facts 16, 19-23, 26.] It is also undisputed that Plaintiff was bicycling on Defendant’s property for recreational purposes. [Defense Facts 19-24.] Defendant asserted section 846 immunity as an affirmative defense. [Answer, Attachment 2 to RJN at ¶ 17.] Plaintiff did not plead in his Complaint any section 846 exception, including willful misconduct, express invitation, or consideration. [Complaint, Attachment 1 to RJN, *passim*.]

Defendant has therefore met its initial burden by showing that there is no genuine issue of material fact, as section 846 immunity bars Plaintiff’s premises-liability claim against it. Because Plaintiff did not allege any facts triggering potential applicability of an exception to section 846, including the Consideration Exception, Defendant need not negate the exception as part of its initial summary-judgment burden. [*County of San Diego v. Superior Court* (2015) 242 Cal.App.4th 460, 469.] The burden now shifts to Plaintiff to show that triable factual issues exist.

2. Plaintiff Did Not Meet His Summary-Judgment Burden.

The undisputed facts establish that: (1) Plaintiff paid no fee to enter Pebble Beach; (2) pedestrians and bicyclists are never charged to enter Pebble Beach; and (3) the gate fee is charged only to motorists and is associated with vehicle usage on privately maintained roads. [Defense Facts 52-57 and 61-67.]

Plaintiff opposes summary judgment by relying solely on the Consideration Exception. [Civ. Code § 846, subd. (d)(2).] Plaintiff argues that motorists’ payment of an entry fee for “coastal access” satisfies the requirement that consideration was “received from others for the same purpose.” [6/5/26 Opp. at pp. 1-2; 8/28/26 Supp. Opp. at pp. 2-7.] For Plaintiff, “same purpose” means accessing the private roadway system to access the same scenic property. [Opp. at 7:13-18.] Defendant disagrees and argues that “same purpose” means that driving a car for sightseeing is a different purpose than bicycling. [Reply at 7:6-8.]

Defendant has the stronger argument. The Consideration Exception, which hinges on consideration paid by others for the “same purpose,” does not cover Plaintiff’s case. This exception only applies if permission to enter was given for consideration or if consideration was received from others for the same purpose. Courts interpreting section 846 consistently agree that consideration is usually an entrance fee for permission to access the property. [*Miller v. Weitzen* (2005) 133 Cal.App.4th 732, 739-740 (“To trigger the consideration exception of section 846, payment must be made in exchange for permission to enter the property or received from others for the same purpose. Consistent with this text, the few published California cases interpreting the consideration exception have noted that for the exception to apply, consideration must generally be paid in the form of an entrance fee.”) (internal quotes and citation omitted; original italics); *Johnson v. Unocal Corp.* (1993) 21 Cal.App.4th 310, 316-317 (“as regards section 846, we are aware of no cases in which consideration did not involve the actual payment of an entrance fee by plaintiff to defendant.”).] Defendant’s cited federal authorities are persuasive and consistently hold that a fee paid by some users for different purposes does not remove section 846 immunity when the plaintiff entered without charge. [*Casas v. U.S.* (C.D. Cal. 1998) 19 F.Supp.2d 1104, 1105-1108 (consideration exception did not apply where the plaintiff entered a military station without paying a fee to run a race and had not yet paid the fee for the race when injured.); *Judd v. U.S.* (S.D. Cal. 1987) 650 F.Supp. 1503, 1512 (Consideration Exception did not apply because the plaintiff did not use a designated camp site and paid no fee at any point within the forest); *Spence v. U.S.* (E.D. Cal. 2009) 629 F.Supp.2d 1068, 1087-1088 (bicyclist’s payment of fee to participate in recreational bicycling tour did not constitute entrance fee to fall within consideration exception).]

Plaintiff’s position would effectively collapse the distinction between entry fees and fees for particular uses, contrary to section 846’s structure and purpose. The purpose of section 846 is to encourage landowners to open private land for recreational use free of charge. [*Ornelas*, 4 Cal.4th at 1107.] Pebble Beach allows bicyclists and pedestrians to enter without payment. Accepting Plaintiff’s theory—that a motor-vehicle fee converts the entire property into paid-access land—would discourage private landowners from permitting free access to non-paying users, directly undermining the statute.

Plaintiff’s reliance on SOP No. 95’s reference to “Coastal Access” does not create a triable issue. [Plaintiff’s Fact 1.] Under Defendant’s undisputed policy, any person may enter Pebble Beach for free; only bringing a motor vehicle requires payment. [Defense Facts 52-57 and 61-67.] The “purpose” for the fee differs from the “recreational purpose” for which Plaintiff entered—cycling. No evidence supports that any consideration was charged for permission to enter Pebble Beach on foot or by bicycle.

The Consideration Exception is therefore inapplicable as a matter of law. It does not apply if the fee is not required for permission to access the premises where the injury happened. As a result of Plaintiff’s failure to meet his summary-judgment burden, Defendant’s motion is **GRANTED**.

Conclusion.

The summary-judgment motion is **GRANTED**, and Defendant shall prepare the Proposed Order and Judgment consistent with this Tentative Ruling.

NOTE REGARDING TENTATIVE RULING

This tentative ruling becomes the Court's order, and no hearing shall be held unless a party contests. [Cal. Rules of Ct., rule 3.1308; Super. Ct. Monterey County, Local Rules, rule 7.9.] The party wishing to present oral argument must notify all other parties and the Court no later than 4:00 p.m. on the court day before the hearing; otherwise, **NO ORAL ARGUMENT WILL BE PERMITTED, AND THE TENTATIVE RULING WILL BECOME THE ORDER OF THE COURT, AND THE HEARING WILL BE VACATED.** You must notify the court by [email](#) or by calling the Calendar Department at 831-647-5800, extension 3040, before 4:00 p.m. on the court day before the hearing.

COURT REPORTERS AND AUDIO RECORDINGS

The parties are advised that they are entitled to a verbatim, word-for-word record of these proceedings for purposes of any appeal. Ordinarily, an official court reporter creates such a record. However, the Court does not provide court reporters for civil proceedings such as this case. Any party who wishes may retain a privately hired court reporter to create the record.

If a party desires a verbatim record but cannot afford a privately hired reporter, the Court may, in appropriate circumstances, make an electronic recording of the hearing. [*Family Violence Appellate Project v. Superior Court* (2026) __ Cal.5th __, 346 Cal.Rptr.3d 841, 862-863.] Any party seeking such a recording must notify the judicial officer by no later than when the matter is called. The Court makes the recording at no charge, though fees may apply if a party later requests a copy of the recording or a written transcript.